of an emission control system to a level below that expected on the applicable emission test procedures.

.20 Low-flashpoint fuel means gaseous or liquid fuel oil having a flashpoint lower

---CHUNK---

SOURCE: MEPC.328(76).pdf
of an emission control system to a level below that expected on the applicable emission test procedures.

.20 Low-flashpoint fuel means gaseous or liquid fuel oil having a flashpoint lower than otherwise permitted under paragraph 2.1.1 of regulation 4 of chapter II-2 of the International Convention for the Safety of Life at Sea (SOLAS), 1974, as amended.

.21 Marine diesel engine means any reciprocating internal combustion engine operating on liquid or dual fuel, to which regulation 13 of this Annex applies, including booster/compound systems if applied. In addition, a gas-fuelled engine installed on a ship constructed on or after 1 March 2016 or a gas-fuelled additional or non-identical replacement engine installed on or after that date is also considered as a marine diesel engine.

.22 MARPOL delivered sample means the sample of fuel oil delivered in accordance with regulation 18.8.1 of this Annex.

.23 NOx Technical Code means the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines adopted by resolution 2 of the 1997 MARPOL Conference, as amended by the Organization, provided

---CHUNK---

SOURCE: MEPC.328(76).pdf
.23 NOx Technical Code means the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines adopted by resolution 2 of the 1997 MARPOL Conference, as amended by the Organization, provided that such amendments are adopted and brought into force in accordance with the provisions of article 16 of the present Convention.

.24 Onboard sample means a sample of fuel oil intended to be used or carried for use on board that ship.

.25 Ozone-depleting substances means controlled substances defined in paragraph (4) of article 1 of the Montreal Protocol on Substances that Deplete the Ozone Layer, 1987, listed in Annexes A, B, C or E to the said Protocol in force at the time of application or interpretation of this Annex.

Ozone-depleting substances that may be found on board ship include, but are not limited to:

Halon 1211 Bromochlorodifluoromethane
Halon 1301 Bromotrifluoromethane
Halon 2402 1,2-Dibromo-1,1,2,2-tetrafluoroethane (also known as Halon 114B2)

CFC-11 Trichlorofluoromethane
CFC-12 Dichlorodifluoromethane
CFC-113 1,1,2-Trichloro-1,2,2-trifluoroethane
CFC-114 1,2-Dichloro-1,1,2,2-tetrafluoroethane

---CHUNK---

SOURCE: MEPC.328(76).pdf
Halon 2402 1,2-Dibromo-1,1,2,2-tetrafluoroethane (also known as
Halon 114B2)
CFC-11 Trichlorofluoromethane
CFC-12 Dichlorodifluoromethane
CFC-113 1,1,2-Trichloro-1,2,2-trifluoroethane
CFC-114 1,2-Dichloro-1,1,2,2-tetrafluoroethane
CFC-115 Chloropentafluoroethane

.26 Shipboard incineration means the incineration of wastes or other matter on board a ship, if such wastes or other matter were generated during the normal operation of that ship.

.27 Shipboard incinerator means a shipboard facility designed for the primary purpose of incineration.
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 6 -

.28 Ships constructed means ships the keels of which are laid or that are at a similar stage of construction.

.29 Sludge oil means sludge from the fuel oil or lubricating oil separators, waste lubricating oil from main or auxiliary machinery, or waste oil from bilge water separators, oil filtering equipment or drip trays.

---CHUNK---

SOURCE: MEPC.328(76).pdf
.29 Sludge oil means sludge from the fuel oil or lubricating oil separators, waste lubricating oil from main or auxiliary machinery, or waste oil from bilge water separators, oil filtering equipment or drip trays.

.30 Sulphur content of fuel oil means the concentration of sulphur in a fuel oil, measured in % m/m as tested in accordance with a standard acceptable to the Organization.

.31 Tanker in relation to regulation 15 of this Annex means an oil tanker as defined in regulation 1 of Annex I to the present Convention or a chemical tanker as defined in regulation 1 of Annex II to the present Convention.

.32 Unmanned non-self-propelled (UNSP) barge means a barge that:

.1 is not propelled by mechanical means;

.2 has no system, equipment and/or machinery fitted that may

generate emissions regulated by this Annex; and

.3 has neither persons nor living animals on board.

2 For the purpose of chapter 4:

.1 A ship delivered on or after 1 September 2019 means a ship:

.1 for which the building contract is placed on or after 1 September 2015; or

.2 in the absence of a building contract, the keel of which is laid, or which

---CHUNK---

SOURCE: MEPC.328(76).pdf
.1 A ship delivered on or after 1 September 2019 means a ship:

.1 for which the building contract is placed on or after 1 September 2015; or

.2 in the absence of a building contract, the keel of which is laid, or which is at a similar stage of construction, on or after 1 March 2016; or

.3 the delivery of which is on or after 1 September 2019.

.2 Attained annual operational CII is the operational carbon intensity indicator value achieved by an individual ship in accordance with regulations 26 and 28 of this Annex.

.3 Attained EEDI is the EEDI value achieved by an individual ship in accordance with regulation 22 of this Annex.

.4 Attained EEXI is the EEXI value achieved by an individual ship in accordance with regulation 23 of this Annex.

.5 Bulk carrier means a ship which is intended primarily to carry dry cargo in bulk, including such types as ore carriers as defined in regulation 1 of chapter XII of the International Convention for the Safety of Life at Sea (SOLAS), 1974, (as amended) but excluding combination carriers.

.6 Calendar year means the period from 1 January until 31 December inclusive.

---CHUNK---

SOURCE: MEPC.328(76).pdf
the International Convention for the Safety of Life at Sea (SOLAS), 1974, (as amended) but excluding combination carriers.

.6 Calendar year means the period from 1 January until 31 December inclusive.

.7 Combination carrier means a ship designed to load 100% deadweight with both liquid and dry cargo in bulk.

.8 Company means the owner of the ship or any other organization or person such as the manager, or the bareboat charterer, who has assumed the responsibility for operation of the ship from the owner of the ship and who on assuming such responsibility has agreed to take over all the duties and responsibilities imposed by the International Management Code for the Safe Operation of Ships and for Pollution Prevention, as amended.

.9 Containership means a ship designed exclusively for the carriage of containers in holds and on deck.

.10 Conventional propulsion means a method of propulsion where a main

---CHUNK---

SOURCE: MEPC.328(76).pdf
Operation of Ships and for Pollution Prevention, as amended.

.9 Containership means a ship designed exclusively for the carriage of containers in holds and on deck.